

Source: SEC EDGAR, VICI Properties Inc. 8-K, filed 2017-11-30, Accession 0001705696-17-000026, Exhibit 10.1 (Hotel Las Vegas Purchase Agreement Exhibit I)

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The acquisition of Centaur Holdings, LLC and the Gaming Facilities contemplated to be acquired thereunder, except to the extent set forth in the definition of "Propco Opportunity Transaction."

EXHIBIT I

Title Commitment

8363 W Sunset Road, Suite 100
Las Vegas, NV 89113 Phone:
(702) 932-0779

COMMITMENT FOR TITLE INSURANCE

Issued by

Fidelity National Title Insurance Company

Fidelity National Title Insurance Company, a California corporation ("Company"), for a valuable consideration, commits to issue its policy or policies of title insurance, as identified in Schedule A, in favor of the Proposed Insured named in Schedule A, as owner or mortgagee of the estate or interest in the land described or referred to in Schedule A, upon payment of the premiums and charges and compliance with the Requirements; all subject to the provisions of Schedules A and B and to the Conditions of this Commitment.

This Commitment shall be effective only when the identity of the Proposed Insured and the amount of the policy or policies committed for have been inserted in Schedule A by the Company.

All liability and obligation under this Commitment shall cease and terminate 6 months after the Effective Date or when the policy or policies committed for shall issue, whichever first occurs, provided that the failure to issue the policy or policies is not the fault of the Company.

The Company will provide a sample of the policy form upon request.

IN WITNESS WHEREOF, Fidelity National Title Insurance Company has caused its corporate name and seal to be affixed by its duly authorized officers on the date shown in Schedule A.

Countersigned by:

Authorized Signature

Fidelity National Title Insurance Company SCHEDULE A

Name and Address of Title Insurance Company: **Fidelity National Title Group**
8363 W Sunset Road, Suite 100 Las Vegas, NV 89113

Order No.: **42041057-421-421-BB1/50823-NV**

Fredric Glassman Senior Vice President
Fidelity National Title Insurance Company 485 Lexington Avenue, 18th Floor
New York, New York 10017 Office: (212) 471-3703
Cell: (215) 514-0633

Title Officer: **Bonnie Blackburn Fidelity National Title Group-NCS 8363 West Sunset Road, Suite 100**
Las Vegas, NV 89113
PH (702) 952-8294
Bonnie.Blackburn@FNF.com

1. Effective Date: **November 13, 2017 (4th Amendment)**
2. Policy or Policies to be issued:
 - a. **ALTA Extended Owners Policy (6-17-06) w/NV Mods**
Proposed Insured: NEW ENTITY NAME TO BE DETERMINED
Liability: \$30,000,000.00 EXACT AMOUNT TO BE DETERMINED
3. The estate or interest in the land described or referred to in this Commitment is:
Fee as to Parcel 1 and Easement as to Parcels 2, 3, 4, 5, 6 and 7
4. Title to the estate or interest in the land is at the Effective Date vested in:
Harrah's Las Vegas, LLC, a Nevada limited liability company
5. The land referred to in this Commitment is described as follows:
See Exhibit A attached hereto and made a part hereof.



EXHIBIT A LEGAL DESCRIPTION

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE COUNTY OF CLARK, STATE OF NEVADA, AND IS DESCRIBED AS FOLLOWS:

Parcel One (1):

Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, Page 39, Official Records of Clark County, Nevada.

Excepting Therefrom Parcels "A" and "B" as shown on that Record of Survey recorded in File 184 of Surveys, Page 68 of Official Records in Clark County, Nevada, more particularly described as follows:

Parcel "A"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW $\frac{1}{4}$) of the Southwest Quarter (SW $\frac{1}{4}$) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South $88^{\circ}42'36''$ East, 23.21 feet to the Point of Beginning; thence departing said South line, North $05^{\circ}08'03''$ East, 60.62 feet; thence South $89^{\circ}12'48''$ East, 64.35 feet; thence South $05^{\circ}08'03''$ West, 61.19 feet to the South line of said Lot One (1); thence along said South line, North $88^{\circ}42'36''$ West, 64.31 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.92 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said parcel consists of air rights only. And

Parcel "B"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW $\frac{1}{4}$) of the Southwest Quarter (SW $\frac{1}{4}$) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South $88^{\circ}42'36''$ East, 128.29 feet to the Point of Beginning; thence departing said South line, North $01^{\circ}15'51''$ East, 4.74 feet; thence North $88^{\circ}44'09''$ West, 2.99 feet to the beginning of a non-tangent curve, concave to the East, having a radius of 52.00 feet, from which beginning the radius bears South $89^{\circ}50'17''$ East,

thence Northerly along said curve, through a central angle of $09^{\circ}55'21''$, an arc length of 9.01 feet; thence South $81^{\circ}07'25''$ East, 3.04 feet to the beginning of a non-tangent curve, concave to the Southeast, having



a radius of 47.83 feet, from which beginning the radius bears South 80°10'47" East; thence Northeasterly along said curve, through a central angle of 29°15'25", an arc length of 24.42 feet; thence North 49°24'59" West, 3.00 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.82 feet, from which beginning the radius bears South 51°49'50" East; thence Northeasterly along said curve, through a central angle of 10°46'44", an arc length of 9.00 feet; thence South 41°15'24" East, 2.31 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 54.50 feet, from which beginning the radius bears South 52°39'46" East; thence Northeasterly along said curve, through a central angle of 59°40'53", an arc length of 56.77 feet to the beginning of a non-tangent curve, concave to the North, having a radius of 44.00 feet, from which beginning the radius bears North 36°06'43" East; thence Easterly along said curve, through a central angle of 79°55'17", an arc length of 61.38 feet; thence South 43°48'34" East, 20.95 feet; thence South 88°44'09" East, 55.02 feet to a point on the Easterly boundary of said Lot One (1); thence along said Easterly boundary, South 01°14'01" East, 54.88 feet to the Southerly boundary of said Lot One (1); thence along said Southerly boundary, North 88°42'36" West, 193.47 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.00 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said Parcel consists of air rights only.

The foregoing metes and bounds legal descriptions were prepared by John Forsman, Horizon Surveys, 9901 Covington Cross, Suite 120, Las Vegas, NV 89144.

Parcel Two (2):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easement recorded April 21, 1981 in Book 1388 as Document No. 1347424 and amended by Amendment to Grant of Easement recorded July 15, 1986 in Book 860715 as Document No. 00811, Official Records, Clark County, Nevada.

Parcel Three (3):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easement recorded April 21, 1981 in Book 1388 as Document No. 1347426, Official Records, Clark County, Nevada.

Parcel Four (4):

A non-exclusive easement for ingress and egress as set forth in that certain Memorandum of Agreement recorded April 16, 1998 in Book 980416 as Document No. 000618, Official Records, Clark County, Nevada..

Parcel Five (5):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easements and Declaration Establishing Rights, Covenants, Conditions and Restrictions Regarding the Construction, Use, Operation and Maintenance of the Connection Area to the Monorail Station recorded September 20, 2000 in Book 20000920 as Document No. 00208, Official Records, Clark County, Nevada.

Parcel Six (6):



A non-exclusive easement for ingress and egress as set forth in that certain Right of Entry Agreement for Ingress and Egress recorded August 26, 2002 in Book 20020826 as Document No. 00566, Official Records, Clark County, Nevada.

Parcel Seven (7):

A non-exclusive easement for ingress and egress as set forth in that certain Declaration of Covenants, Restrictions and Easements, recorded August 10, 2011 as Instrument No. 2011081000001475, as amended by that certain First Amendment to the Declaration of Covenants, Restrictions and Easements, recorded September 12, 2012 as Instrument No. 2010912-0002364, and further amended by that certain Second Amendment to Declaration of Covenants, Restrictions and Easements, recorded October 11, 2013, as Instrument No. 20131011-0004747, Official Records, Clark County, Nevada.

AS-SURVEYED LEGAL DESCRIPTION:

Beginning at the Northwest Corner of Lot 1 of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, Thence South 89°10'27" East, 1,061.65 feet; Thence North 00°58'24" West, 7.81 feet; Thence South 89°19'19" East, 1,309.30 feet; Thence South 00°43'19" East, 40.01 feet; Thence North 89°19'19" West, 498.05 feet; Thence South 00°00'46" East, 191.84 feet; Thence North 88°54'30" West, 788.03 feet; Thence South 00°58'24" East, 213.11 feet; Thence South 89°01'36" West, 20.00 feet; Thence South 00°58'24" East, 40.00 feet; Thence North 88°42'36" West, 863.90 feet; Thence South 01°14'01" East, 150.01 feet; Thence North 88°42'36" West, 321.76 feet to the beginning of a non-tangent curve, concave to the East, having a radius of 3,960.00 feet, from which beginning the radius bears South 84°03'06" East; Thence Northerly along said curve, through a central angle of 08°59'35", an arc length of 621.55 feet to the point of beginning,

Excepting therefrom Parcels "A" and "B" as shown on that Record of Survey recorded in File 184 of Surveys, page 68, of Official Records in Clark County, Nevada, more particularly described as follows:

Parcel "A"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW $\frac{1}{4}$) of the Southwest Quarter (SW $\frac{1}{4}$) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 23.21 feet to the Point of Beginning; thence departing said South line North 05°08'03" East, 60.62 feet; thence South 89°12'48" East, 64.35 feet; thence South 05°08'03" West, 61.19 feet to the South line of said Lot One (1); thence along said South line, North 88°42'36" West, 64.31 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.92 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.57 feet.



Said parcel consists of air rights only. And

Parcel "B"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW ¼) of the Southwest Quarter (SW ¼) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 128.29 feet to the Point of Beginning; thence departing said South line, North 01°15'51" East, 4.74 feet; thence North 88°44'09" West, 2.99 feet to the beginning of a non-tangent curve, concave to the East, having a radius of 52.00 feet, from which beginning the radius bears South 89°50'17" East, thence Northerly along said curve, through a central angle of 09°55'21", an arc length of 9.01 feet; thence South 81°07'25" East, 3.04 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.83 feet, from which beginning the radius bears South 80°10'47" East; thence Northeasterly along said curve, through a central angle of 29°15'25", an arc length of 24.42 feet; thence North 49°24'59" West, 3.00 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.82 feet, from which beginning the radius bears South 51°49'50" East; thence Northeasterly along said curve, through a central angle of 10°46'44", an arc length of 9.00 feet; thence South 41°15'24" East, 2.31 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 54.50 feet, from which beginning the radius bears South 52°39'46" East; thence Northeasterly along said curve, through a central angle of 59°40'53", an arc length of 56.77 feet to the beginning of a non-tangent curve, concave to the North, having a radius of 44.00 feet, from which beginning the radius bears North 36°06'43" East; thence Easterly along said curve, through a central angle of 79°55'17", an arc length of 61.38 feet; thence South 43°48'34" East, 20.95 feet; thence South 88°44'09" East, 55.02 feet to a point on the Easterly boundary of said Lot One (1); thence along said Easterly boundary, South 01°14'01" East, 54.88 feet to the Southerly boundary of said Lot One (1); thence along said Southerly boundary, North 88°42'36" West, 193.47 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.00 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said Parcel consists of air rights only.

The foregoing metes and bounds legal descriptions were prepared by Ryan Sligar, Horizon Surveys, 10501 West Gowan Road, Suite 200, Las Vegas, NV 89129.

APN: 162-16-312-002

Legal Description Documents: Book 143 of Plats, Page 39

File 184 of Surveys, Page 68

1347424

Book 860715, Document No. 00811

1347426

Book 980416, Document No. 000618

Book 20000920, Document No. 00208

Book 20020826, Document No. 00566

2011081000001475



SCHEDULE B – SECTION I REQUIREMENTS

The following are requirements to be complied with:

1. Instrument creating the estate or interest to be insured must be executed and filed for record, to wit: Grant, Bargain, Sale Deed
2. Pay the full consideration to, or for the account of, the grantors or mortgagors.
3. Pay all taxes, charges, assessments, levied and assessed against subject premises, which are due and payable.
4. Satisfactory evidence should be had that improvements and/or repairs or alterations thereto are completed; that contractor, sub-contractors, labor and materialmen are all paid; and have released of record all liens or notice of intent to perfect a lien for labor or material.
5. Original note, deed of trust and properly signed request for full reconveyance, or the executed full reconveyance or substitution of trustee and deed of reconveyance for the following items:
 - A. A deed of trust to secure an indebtedness in the amount shown below, Amount: \$3,769,500,000.00
Dated: November 07, 2013
Trustor/Grantor Harrah's Las Vegas, LLC, a Nevada limited liability company Trustee: Fidelity National Title Agency of Nevada, Inc., a Nevada corporation
Beneficiary: Citicorp North America, Inc., as collateral agent for the Secured Parties Recording Date: November 07, 2013
Recording No: 201311070002748, of Official Records and Re-Recording Date: April 28, 2014 and Re-Recording No: 20140428-0000814, of Official Records
 - B. A deed of trust to secure an indebtedness in the amount shown below, Amount: \$1,150,000,000.00
Dated: November 07, 2013
Trustor/Grantor Harrah's Las Vegas, LLC, a Nevada limited liability company Trustee: Fidelity National Title Agency of Nevada, Inc., a Nevada Corporation
Beneficiary: U.S. Bank National Association, as collateral agent for the Secured Parties Recording Date: November 07, 2013
Recording No: 2013110700002743, of Official Records and Re-Recording Date: April 28, 2014 and Re-Recording No: 20140428-0000106, of Official Records
6. Pay the demand(s) of the following items: See Items 5A and 5B above
7. Payment of all fees due the Company at the time of closing.
8. Additional requirements will be made when the Company is provided with the complete name and status of the proposed Buyer/Lender.



9. An inspection of said Land has been ordered; upon its completion the Company reserves the right to except additional items and/or make additional requirements.
10. If Extended Coverage is requested, this Company will require an ALTA/NSPS LAND TITLE SURVEY. If the owner of the Land the subject of this transaction is in possession of a current ALTA/NSPS LAND TITLE SURVEY, the Company will require that said survey be submitted for review and approval; otherwise, a new survey, satisfactory to the Company, must be prepared by a licensed land surveyor and supplied to the Company prior to the close of escrow.

The Company reserves the right to add additional items or make further requirements after review of the requested documentation.

11. The Company will require the following documents for review prior to the issuance of any title insurance predicated upon a conveyance or encumbrance from the entity named below:

Limited Liability Company: Harrah's Las Vegas, LLC

- a) A copy of its operating agreement, if any, and any and all amendments, supplements and/or modifications thereto, certified by the appropriate manager or member
- b) If a domestic Limited Liability Company, a copy of its Articles of Organization and all amendments thereto with the appropriate filing stamps
- c) If the Limited Liability Company is member-managed, a full and complete current list of members certified by the appropriate manager or member
- d) A current dated certificate of good standing from the proper governmental authority of the state in which the entity was created
- e) If less than all members, or managers, as appropriate, will be executing the closing documents, furnish evidence of the authority of those signing.

The Company reserves the right to add additional items or make further requirements after review of the requested documentation.

12. EFFECTIVE JULY 1, 2003, ALL DOCUMENTS, EXCEPT MAPS, SUBMITTED FOR RECORDING WITH THE OFFICE OF THE CLARK/NYE COUNTY RECORDER, MUST COMPLY WITH NRS 247.110, AS FOLLOWS:

- (a) Be on 20# paper that is 8 ½ inches by 11 inches in size;
- (b) Have a margin of 1 inch on the left and right sides and at the top and bottom of each page;
- (c) Have a space of 3 inches by 3 inches at the upper right corner of the first page and have a margin of 1 inch at the top of each succeeding page;
- (d) Not contain printed material on more than one side of each page;
- (e) Print that is NO smaller than 10 point Times New Roman font and contains no more than 9 lines of text per vertical inch; and
- (f) MUST NOT be printed in any ink other than black.

ANY DOCUMENT NOT COMPLYING WITH THESE GUIDELINES WILL BE SUBJECT TO AN ADDITIONAL, MINIMUM COUNTY NON-CONFORMING RECORDING CHARGE OF \$25.00 PER DOCUMENT.



13. Your application for title insurance was placed by reference to only a street address or tax identification number. Based on our records, we believe that the legal description in this report covers the parcel(s) of Land that you requested. If the legal description is incorrect, the seller/borrower must notify the Company and/or the settlement company in order to prevent errors and to be certain that the correct parcel(s) of Land will appear on any documents to be recorded in connection with this transaction and on the policy of title insurance.
14. Notice: Please be aware that due to the conflict between federal and state laws concerning the cultivation, distribution, manufacture or sale of marijuana, the Company is not able to close or insure any transaction involving Land that is associated with these activities.
15. Last Deed of record purporting to convey title:
Grantor :Harrah's Las Vegas, Inc., a Nevada corporation
Grantee :Harrah's Las Vegas Propco, LLC, a Delaware limited liability company
Recorded :January 28, 2008 as Instrument No. 20080128-0000503, Official Records.

Certificate of Merger
Grantor: Harrah's Las Vegas Propco, LLC, a Delaware limited liability company
Grantee: Harrah's Las Vegas, LLC, a Nevada limited liability company
Recording Date: October 11, 2013
Recording No.: 201310110004742, of Official Records

3475 South Las Vegas Boulevard Las Vegas, Nevada

[Download all Exceptions here](#)

END OF SCHEDULE B – SECTION I



SCHEDULE B – SECTION II EXCEPTIONS

Schedule B of the policy or policies to be issued will contain exceptions to the following matters unless the same are disposed of to the satisfaction of the Company:

1. (a) Taxes or assessments that are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the Public Records; (b) proceedings by a public agency that may result in taxes or assessments, or notices of such proceedings, whether or not shown by the records of such agency or by the Public Records.
2. Any facts, rights, interests, or claims that are not shown by the Public Records but that could be ascertained by an inspection of the Land or that may be asserted by persons in possession of the Land.
3. Easements, liens or encumbrances, or claims thereof, not shown by the Public Records.
4. Discrepancies, conflicts in boundary lines, shortage in area, encroachments or any other facts which a correct survey would disclose, and which are not shown by the Public Records.
5. (a) Unpatented mining claims; (b) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) water rights, claims or title to water, whether or not the matters excepted under (a), (b) or (c) are shown by the Public Records.
6. Any lien or right to a lien for services, labor or material not shown by the Public Records.
7. General and special State, County and/or City property taxes, for the fiscal year 2017-2018, the First and Second Quarters are paid in full, the Third and Fourth Quarters are not yet due and payable:
Assessor's Parcel No.: 162-16-312-002
8. Special assessment, as follows: Assessment No.: 97B
AMG ID No.: 7506
Assessments Due: quarterly Original Assessment: \$6,431.48 Payoff Amount: \$4,823.61
Amount of Next Inst: \$0.00 (Re-occurring) Figures are good to: November 01, 2017
Mail payments to: Clark County Treasurer – SID
File 57254
Los Angeles, CA 90074-7254 Assessor's Parcel No.: 162-16-312-002
9. Any taxes that may be due, but not assessed, for new construction which can be assessed on the unsecured property rolls in the Office of the Clark County Assessor, per Nevada Statute 361.260.
10. Water rights, claims or title to water, whether or not disclosed by the public records.
11. Reservations, exceptions and provisions contained in the patent from the United States of America, and in the acts authorizing the issuance thereof.
Recording Date: December 05, 1912
Recording No: Book 2 of Deeds, Page 481, Instrument No. 4675, of Official Records



12. Reservations, exceptions and provisions contained in the patent from the United States of America, and in the acts authorizing the issuance thereof.
Recording Date: January 17, 1925
Recording No: Book 10 of Deeds, Page 410, Instrument No. 21882, of Official Records
13. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Southern Nevada Power Co.
Purpose: transmitting electric
Recording Date: October 29, 1952
Recording No: Book 68, Page 173, Instrument No. 393812, of Official Records
- As shown on that certain ALTA/ACSM Survey prepared by Ryan G Sligar, PLS No. 21263 with Horizon Surveys, LLC, dated October 13, 2013 and last revised November 21, 2013 Job No. 1041.002 (the "Survey").
14. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Southern Nevada Power Company
Purpose: transmitting electric
Recording Date: February 13, 1953
Recording No: Book 69, Page 305, Instrument No. 400048, of Official Records And as shown on the Survey.
15. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: sewage lines
Recording Date: March 15, 1956
Recording No: Book 87, Instrument No. 72647, of Official Records
- And as shown on the Survey.
16. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: sewage lines
Recording Date: March 15, 1956
Recording No: Book 87, Instrument No. 72648, of Official Records
- And as shown on the Survey.
Granted to: County of Clark
Purpose: sewage lines
Recording Date: June 17, 1965
Recording No: Book 635, Instrument No. 510670, of Official Records
- And as shown on the Survey.
18. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: sewage lines
Recording Date: June 17, 1965
Recording No: Book 635, Instrument No. 510671, of Official Records



And as shown on the Survey.

19. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District
Purpose: pipelines
Recording Date: March 22, 1971
Recording No: Book 110, Instrument No. 87444, of Official Records

And as shown on the Survey.

20. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company and Central Telephone Company Purpose: underground electric and telephone communication lines
Recording Date: December 14, 1972
Recording No: Book 286, Instrument No. 245581, of Official Records

And as shown on the Survey.

21. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company and Central Telephone Company Purpose: underground electric and telephone communication lines
Recording Date: December 22, 1972
Recording No: Book 288, Instrument No. 247913, of Official Records

The interest of Central Telephone Company was relinquished by document recorded October 27, 1978 in Book 962 as Document No. 921608, Official Records.

And as shown on the Survey.

22. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: electrical substation
Recording Date: December 22, 1972
Recording No: Book 288, Instrument No. 247914, of Official Records

And as shown on the Survey.

23. INTENTIONALLY DELETED

24. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company and Central Telephone Company Purpose: electric and telephone lines
Recording Date: December 01, 1978
Recording No: Book 877, Instrument No. 936613, of Official Records

And as shown on the Survey.

25. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Clark County Sanitation District No. One



Purpose: sewage lines
Recording Date: February 14, 1980
Recording No: Book 1187, Instrument No. 1146031, of Official Records

And as shown on the Survey.

26. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District
Purpose: pipelines
Recording Date: June 16, 1980
Recording No: Book 1241, Instrument No. 1200335, of Official Records

And as shown on the Survey.

27. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: perpetual avigation
Recording Date: March 30, 1981
Recording No: Book 1377, Instrument No. 1336574, of Official Records

28. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Holiday Inns, Inc.
Purpose: ingress and egress
Recording Date: April 21, 1981
Recording No: Book 1388, Instrument No. 1347424, of Official Records
An amendment to Grant of Easement was recorded July 15, 1986 in Book 860715 as Document No. 00811 Official Records.

And as shown on the Survey.

29. INTENTIONALLY DELETED

30. Non-exclusive easement(s) for the purpose shown below and rights incidental thereto as reserved in a Deed:
Purpose: ingress and egress
Recording Date: April 30, 1981
Recording No: Book 1393, Instrument No. 1352779, of Official Records

And as shown on the Survey.

31. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: electrical lines
Recording Date: July 29, 1981
Recording No: Book 1440, Instrument No. 1399086, of Official Records

And as shown on the Survey.

32. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: electric systems
Recording Date: September 14, 1981



Recording No: Book 1462, Instrument No. 1421370, of Official Records

And as shown on the Survey.

33. INTENTIONALLY DELETED

34. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: County of Clark

Purpose: perpetual avigation

Recording Date: April 03, 1987

Recording No: Book 870403, Instrument No. 00629, of Official Records and Re-Recording

Date: April 20, 1988

and Re-Recording No: Book 880420, Instrument No. 00846, of Official Records

35. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: County of Clark

Purpose: perpetual avigation

Recording Date: October 06, 1987

Recording No: Book 871006, Instrument No. 00588, of Official Records

36. Dedication(s) and non-exclusive easement(s) and rights incidental thereto as indicated or delineated on the map of said parcel map:

Recording No.: File 56 of Parcel Maps, Page 72, of Official Records

And as shown on the Survey.

37. Dedication(s) and non-exclusive easement(s) and rights incidental thereto as indicated or delineated on the map of said parcel map:

Recording No.: File 57 of Parcel Maps, Page 51, of Official Records

And as shown on the Survey.

38. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: County of Clark

Purpose: perpetual avigation

Recording Date: August 07, 1989

Recording No: Book 890807, Instrument No. 00613, of Official Records

39. Terms, provisions and conditions as contained in an instrument Entitled: Access to Equipment Agreement

Recording Date: June 19, 1990

Recording No.: Book 900619, Instrument No. 00622 and 00623, of Official Records

40. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company

Purpose: electric systems

Recording Date: June 28, 1990

Recording No: Book 900628, Instrument No. 01081, of Official Records

And as shown on the Survey.

41. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company



Purpose: transmission and distribution of electricity
Recording Date: June 28, 1990
Recording No: Book 900628, Instrument No. 01082, of Official Records

And as shown on the Survey.

42. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: perpetual avigation
Recording Date: April 13, 1995
Recording No: Book 950413, Instrument No. 00060, of Official Records and Re-Recording
Date: October 04, 1995
and Re-Recording No: Book 951004, Instrument No. 00892, of Official Records
43. Terms, provisions and conditions as contained in an instrument Entitled: Agreement
Recording Date: March 25, 1996
Recording No.: Book 960325, Instrument No. 00926, of Official Records
- Subject to an Order of Vacation recorded August 01, 2013 as Instrument No. 201308010000046, of Official Records.
44. INTENTIONALLY DELETED
45. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: energizing and maintaining electrical facilities
Recording Date: March 05, 1997
Recording No: Book 970305, Instrument No. 00660, of Official Records
46. Terms, provisions and conditions as contained in an instrument Entitled: Agreement
Recording Date: April 01, 1997
Recording No.: Book 970401, Instrument No. 02038, of Official Records
- Subject to an Order of Vacation recorded August 01, 2013 as Instrument No. 201308010000046, of Official Records.
47. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District
Purpose: water pipelines
Recording Date: April 02, 1997
Recording No: Book 970402, Instrument No. 01949, of Official Records
- A partial relinquishment of above easement was recorded October 12, 2001 in Book 20011012 as Document No. 01156, Official Records.
- And as shown on the Survey.
48. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District



Purpose: pipelines
Recording Date: April 02, 1997
Recording No: Book 970402, Instrument No. 01950, of Official Records

And as shown on the Survey.

49. INTENTIONALLY DELETED
50. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District
Purpose: pipelines
Recording Date: July 03, 1997
Recording No: Book 970703, Instrument No. 00912, of Official Records

And as shown on the Survey.

51. Terms, provisions and conditions as contained in an instrument Entitled: Memorandum of Agreement
Recording Date: April 16, 1998
Recording No.: Book 980416, Instrument No. 00618, of Official Records

And as shown on the Survey.

52. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: underground electrical systems
Recording Date: May 05, 1999
Recording No: Book 990505, Instrument No. 00828, of Official Records

And as shown on the Survey.

53. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: traffic signal and intersection lighting facilities
Recording Date: January 09, 2001
Recording No: Book 20010109, Instrument No. 00205, of Official Records

And as shown on the Survey.

54. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: MGM Grand-Bally's Monorail Limited Liability Company Purpose: monorail system maintenance
Recording Date: September 20, 2000
Recording No: Book 20000920, Instrument No. 00207, of Official Records

And as shown on the Survey.

55. Terms, provisions and conditions as contained in an instrument
Entitled: Grant of Easements and Declaration Establishing Rights, Covenants, Conditions and Restrictions
Recording Date: September 20, 2000



Recording No.: Book 20000920, Instrument No. 00208, of Official Records

And as shown on the Survey.

56. INTENTIONALLY DELETED

57. An unrecorded lease with certain terms, covenants, conditions and provisions set forth therein as disclosed by the document

Entitled: Memorandum of Lease

Lessor: Harrah's Las Vegas, Inc.

Lessee: McDonald's Corporation

Recording Date: December 07, 2001

Recording No.: Book 20011207, Instrument No. 01764, of Official Records

The present ownership of the leasehold created by said lease and other matters affecting the interest of the lessee are not shown herein.

58. Terms, provisions and conditions as contained in an instrument

Entitled: Right of Entry Agreement for Ingress and Egress

Recording Date: August 26, 2002

Recording No.: Book 20020826, Instrument No. 00566, of Official Records

And as shown on the Survey.

59. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company

Purpose: energizing and maintaining electrical facilities

Recording Date: February 26, 2003

Recording No.: Book 20030226, Instrument No. 01441, of Official Records

60. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company

Purpose: energizing and maintaining electrical facilities

Recording Date: June 26, 2003

Recording No.: Book 20030626, Instrument No. 03517, of Official Records

61. Terms, provisions and conditions as contained in an instrument Entitled: Agreement

Recording Date: February 07, 2005

Recording No.: Book 20050207, Instrument No. 02148, of Official Records

62. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company

Purpose: transmission and distribution of electricity

Recording Date: October 11, 2005

Recording No.: Book 20051011, Instrument No. 06031, of Official Records

63. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:

Granted to: Nevada Power Company

Purpose: underground electric systems

Recording Date: October 30, 2006

Recording No.: Book 20061030, Instrument No. 02269, of Official Records



And as shown on the Survey.

64. INTENTIONALLY DELETED

65. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Central Telephone Company, d/b/a Centurylink and New Cingular Wireless
PCS, LLC

Purpose: use and operation of underground conduit and cables service

Recording Date: January 11, 2011

Recording No: 201101110002621, of Official Records

And as shown on the Survey.

66. Covenants, conditions and restrictions but omitting any covenants or restrictions, if any, including but not limited to those based upon race, color, religion, sex, sexual orientation, familial status, marital status, disability, handicap, national origin, ancestry, source of income, gender, gender identity, gender expression, medical condition or genetic information, as set forth in applicable state or federal laws, except to the extent that said covenant or restriction is permitted by applicable law, as set forth in the document Recording

Date: August 10, 2011

Recording No: 201108100001475, of Official Records

And as shown on the Survey.

Modification(s) of said covenants, conditions and restrictions Recording Date: September 12, 2012

Recording No: 201209120002364, of Official Records

Second Amendment to the Declaration of Covenants, Restrictions and Easements. Recording

Date: October 11, 2013

Recording No: 201310110004747, of Official Records

67. Dedication(s) and non-exclusive easement for public utilities and rights incidental thereto as indicated or delineated on the map of said tract/plat:

Recording No.: Book 143 of Plats, Page No. 39, of Official Records

The easements shown herein as the following Exceptions are referenced on the above mentioned map: 13, 14, 15, 16, 17, 18, 19, 20, 22, 24, 25, 26, 28, 29, 30, 31, 32, 36, 37, 40, 41, 43, 46, 47, 48, 50, 51, 52, 53, 54, 55, 61 and 63

Subject to an Order of Vacation recorded August 01, 2013 as Instrument No. 201308010000046, of Official Records.

68. An unrecorded lease with certain terms, covenants, conditions and provisions set forth therein as disclosed by the document

Entitled: Assignment and Assumption of Lease

Lessor: Harrah's Las Vegas Propco, LLC, a Delaware limited liability company Lessee: Lido Casino Resort, LLC

Recording Date: August 10, 2011

Recording No: 2011081000001482, of Official Records

The present ownership of the leasehold created by said lease and other matters affecting the interest of the lessee are not shown herein.



The terms, covenants, conditions and provisions as contained in an instrument, entitled "Partial Assignment and Assumption Agreement"

Assignor: Harrah's Las Vegas Propco, LLC, a Delaware limited liability company

Assignee: Flamingo Las Vegas Propco, LLC, a Delaware limited liability company Recording Date: August 10, 2011

Recording No: 201108100001483, of Official Records

69. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: electrical facilities
Recording Date: May 03, 2012
Recording No: 201205030001996, of Official Records
70. Easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Las Vegas Valley Water District
Purpose: water facilities
Recording Date: October 24, 2012
Recording No: 201210240003957, of Official Records and Re-Recording Date: November 15, 2012
and Re-Recording No: 201211150001350, of Official Records

And as shown on the Survey.

71. INTENTIONALLY DELETED
72. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: shelter area or pad
Recording Date: August 01, 2013
Recording No.: 201308010000047, of Official Records

And as shown on the Survey.

73. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: County of Clark
Purpose: pedestrian access
Recording Date: August 01, 2013
Recording No: 201308010000048, of Official Records

And as shown on the Survey.

74. Terms, provisions and conditions as contained in an instrument Entitled: Variance Order
Recording Date: April 29, 2014
Recording No.: 20140429-0001789, of Official Records
75. Non-exclusive easement(s) for the purpose(s) shown below and rights incidental thereto, as granted in a document:
Granted to: Nevada Power Company
Purpose: utility facilities
Recording Date: July 01, 2014
Recording No: 20140701-0000927, of Official Records



And as shown on the Survey.

76. Notice of Posted Security (Nightcap of Las Vegas LLC). Recording Date: February 14, 2017
Recording No: 20170214-0000563, of Official Records
77. Rights of tenants or persons in possession, if any, as tenants in possession of the property under existing written recorded leases, which leases contain no option to purchase or rights of first refusal.
78. Any rights, interests, or claims which may exist or arise by reason of the following matters disclosed by survey,
Prepared by: Ryan D. Sligar PLS No. 21263 with Horizon Surveys Dated: October 21, 2013 last revised November 21, 2013
Job No.: 1041.002
Matters shown: A. The building located on said parcel encroaches over the following easements:
(1) Item 14 (document 400048)
(2) Item 17 (document 510671)
(3) Item 19 (document 87444)
(4) Item 20 (document 245581)
(5) Item 21 (document 247913)
(6) Item 22 (document 247914)
(7) Item 24 (document 936613)
(12) Item 32 (document 1421370) (13) Item 40 (document 900628-1081) (14) Item 41 (document 900628-1082)

END OF SCHEDULE B – SECTION II



CONDITIONS

1. The term mortgage, when used herein, shall include deed of trust, trust deed, or other security instrument.
2. If the proposed Insured has or acquired actual knowledge of any defect, lien, encumbrance, adverse claim or other matter affecting the estate or interest or mortgage thereon covered by this Commitment other than those shown in Schedule B hereof, and shall fail to disclose such knowledge to the Company in writing, the Company shall be relieved from liability for any loss or damage resulting from any act of reliance hereon to the extent the Company is prejudiced by failure to so disclose such knowledge. If the proposed Insured shall disclose such knowledge to the Company, or if the Company otherwise acquires actual knowledge of any such defect, lien, encumbrance, adverse claim or other matter, the Company at its option may amend Schedule B of this Commitment accordingly, but such amendment shall not relieve the Company from liability previously incurred pursuant to paragraph 3 of these Conditions.
3. Liability of the Company under this Commitment shall be only to the named proposed Insured and such parties included under the definition of Insured in the form of policy or policies committed for and only for actual loss incurred in reliance hereon in undertaking in good faith (a) to comply with the requirements hereof, or (b) to eliminate exceptions shown in Schedule B, or (c) to acquire or create the estate or interest or mortgage thereon covered by this Commitment. In no event shall such liability exceed the amount stated in Schedule A for the policy or policies committed for and such liability is subject to the insuring provisions and Conditions and the Exclusions from Coverage of the form of policy or policies committed for in favor of the proposed Insured which are hereby incorporated by reference and are made a part of this Commitment except as expressly modified herein.
4. This Commitment is a contract to issue one or more title insurance policies and is not an abstract of title or a report of the condition of title. Any action or actions or rights of action that the proposed Insured may have or may bring against the Company arising out of the status of the title to the estate or interest or the status of the mortgage thereon covered by this Commitment must be based on and are subject to the provisions of this Commitment.



FIDELITY NATIONAL FINANCIAL PRIVACY NOTICE

At Fidelity National Financial, Inc., we respect and believe it is important to protect the privacy of consumers and our customers. This Privacy Notice explains how we collect, use, and protect any information that we collect from you, when and to whom we disclose such information, and the choices you have about the use of that information. A summary of the Privacy Notice is below, and we encourage you to review the entirety of the Privacy Notice following this summary. You can opt-out of certain disclosures by following our opt-out procedure set forth at the end of this Privacy Notice.

Types of Information Collected. You may provide us with certain personal information about you, like your contact information, address demographic information, social security number (SSN), driver's license, passport, other government ID numbers and/or financial information. We may also receive browsing information from your Internet browser, computer and/or mobile device if you visit or use our websites or applications.	How Information is Collected. We may collect personal information from you via applications, forms, and correspondence we receive from you and others related to our transactions with you. When you visit our websites from your computer or mobile device, we automatically collect and store certain information available to us through your Internet browser or computer equipment to optimize your website experience.
Use of Collected Information. We request and use your personal information to provide products and services to you, to improve our products and services, and to communicate with you about these products and services. We may also share your contact information with our affiliates for marketing purposes.	When Information Is Disclosed. We may disclose your information to our affiliates and/or nonaffiliated parties providing services for you or us, to law enforcement agencies or governmental authorities, as required by law, and to parties whose interest in title must be determined.
Choices With Your Information. Your decision to submit information to us is entirely up to you. You can opt-out of certain disclosure or use of your information or choose to not provide any personal information to us.	Information From Children. We do not knowingly collect information from children who are under the age of 13, and our website is not intended to attract children.
Privacy Outside the Website. We are not responsible for the privacy practices of third parties, even if our website links to those parties' websites.	International Users. By providing us with your information, you consent to its transfer, processing and storage outside of your country of residence, as well as the fact that we will handle such information consistent with this Privacy Notice.
The California Online Privacy Protection Act. Some FNF companies provide services to mortgage loan servicers and, in some cases, their websites collect information on behalf of mortgage loan servicers. The mortgage loan servicer is responsible for taking action or making changes to any consumer information submitted through those websites.	
Your Consent To This Privacy Notice. By submitting information to us or by using our website, you are accepting and agreeing to the terms of this Privacy Notice.	Access and Correction; Contact Us. If you desire to contact us regarding this notice or your information, please contact us at privacy@fnf.com or as directed at the end of this Privacy Notice.



FIDELITY NATIONAL FINANCIAL, INC. PRIVACY NOTICE

Fidelity National Financial, Inc. and its majority-owned subsidiary companies providing title insurance, real estate- and loan-related services (collectively, "FNF", "our" or "we") respect and are committed to protecting your privacy. We will take reasonable steps to ensure that your Personal Information and Browsing Information will only be used in compliance with this Privacy Notice and applicable laws. This Privacy Notice is only in effect for Personal Information and Browsing Information collected and/or owned by or on behalf of FNF, including Personal Information and Browsing Information collected through any FNF website, online service or application (collectively, the "Website").

Types of Information Collected

We may collect two types of information from you: Personal Information and Browsing Information.

Personal Information. FNF may collect the following categories of Personal Information:

- contact information (e.g., name, address, phone number, email address);
- demographic information (e.g., date of birth, gender, marital status);
- social security number (SSN), driver's license, passport, and other government ID numbers;
- financial account information; and
- other personal information needed from you to provide title insurance, real estate- and loan-related services to you.

Browsing Information. FNF may collect the following categories of Browsing Information:

- Internet Protocol (or IP) address or device ID/UDID, protocol and sequence information;
- browser language and type;
- domain name system requests;
- browsing history, such as time spent at a domain, time and date of your visit and number of clicks;
- http headers, application client and server banners; and
- operating system and fingerprinting data.

How Information is Collected

In the course of our business, we may collect *Personal Information* about you from the following sources:

- applications or other forms we receive from you or your authorized representative;
- the correspondence you and others send to us;
- information we receive through the Website;
- information about your transactions with, or services performed by, us, our affiliates or nonaffiliated third parties; and
- information from consumer or other reporting agencies and public records maintained by governmental entities that we obtain directly from those entities, our affiliates or others.

If you visit or use our Website, we may collect *Browsing Information* from you as follows:

- Browser Log Files. Our servers automatically log each visitor to the Website and collect and record certain browsing information about each visitor. The Browsing Information includes generic information and reveals nothing personal about the user.
- Cookies. When you visit our Website, a "cookie" may be sent to your computer. A cookie is a small piece of data that is sent to your Internet browser from a web server and stored on your computer's hard drive. When you visit a website again, the cookie allows the website to recognize your computer. Cookies may store user preferences and other information. You can choose whether or not to accept cookies by changing your Internet browser settings, which may impair or limit some functionality of the Website.

Use of Collected Information

Information collected by FNF is used for three main purposes:

- To provide products and services to you or any affiliate or third party who is obtaining services on your behalf or in connection with a transaction involving you.
- To improve our products and services.
- To communicate with you and to inform you about our, our affiliates' and third parties' products and services, jointly or independently.

When Information Is Disclosed

We may provide your Personal Information (excluding information we receive from consumer or other credit reporting agencies) and Browsing Information to various individuals and companies, as permitted by law, without obtaining your prior authorization. Such laws do not allow consumers to restrict these disclosures. Please see the section "Choices With Your Personal Information" to learn how to limit the discretionary disclosure of your Personal Information and Browsing Information.

Disclosures of your Personal Information may be made to the following categories of affiliates and nonaffiliated third parties:

- to third parties to provide you with services you have requested, and to enable us to detect or prevent criminal activity, fraud, material misrepresentation, or nondisclosure;
- to our affiliate financial service providers for their use to market their products or services to you;
- to nonaffiliated third party service providers who provide or perform services on our behalf and use the disclosed information only in connection with such services;



- to nonaffiliated third party service providers with whom we perform joint marketing, pursuant to an agreement with them to market financial products or services to you;
- to law enforcement or other governmental authority in connection with an investigation, or civil or criminal subpoena or court order;
- to lenders, lien holders, judgment creditors, or other parties claiming an interest in title whose claim or interest must be determined, settled, paid, or released prior to closing; and
- other third parties for whom you have given us written authorization to disclose your Personal Information.

We may disclose Personal Information and/or Browsing Information when required by law or in the good-faith belief that such disclosure is necessary to:

- comply with a legal process or applicable laws;
- enforce this Privacy Notice;
- investigate or respond to claims that any material, document, image, graphic, logo, design, audio, video or any other information provided by you violates the rights of a third party; or
- protect the rights, property or personal safety of FNF, its users or the public.

We maintain reasonable safeguards to keep your Personal Information secure. When we provide Personal Information to our affiliates or third party service providers as discussed in this Privacy Notice, we expect that these parties process such information in compliance with our Privacy Notice or in a manner that is in compliance with applicable privacy laws. The use of your information by a business partner may be subject to that party's own Privacy Notice. Unless permitted by law, we do not disclose information we collect from consumer or credit reporting agencies with our affiliates or others without your consent.

We reserve the right to transfer your Personal Information, Browsing Information, and any other information, in connection with the sale or other disposition of all or part of the FNF business and/or assets, or in the event of our bankruptcy, reorganization, insolvency, receivership or an assignment for the benefit of creditors. You expressly agree and consent to the use and/or transfer of the foregoing information in connection with any of the above described proceedings. We cannot and will not be responsible for any breach of security by a third party or for any actions of any third party that receives any of the information that is disclosed to us.

Choices With Your Information

Whether you submit Personal Information or Browsing Information to FNF is entirely up to you. If you decide not to submit Personal Information or Browsing Information, FNF may not be able to provide certain services or products to you. The uses of your Personal Information and/or Browsing Information that, by law, you cannot limit, include:

- for our everyday business purposes – to process your transactions, maintain your account(s), to respond to law enforcement or other governmental authority in connection with an investigation, or civil or criminal subpoenas or court orders, or report to credit bureaus;
- for our own marketing purposes;
- for joint marketing with financial companies; and
- for our affiliates' everyday business purposes – information about your transactions and experiences.

You may choose to prevent FNF from disclosing or using your Personal Information and/or Browsing Information under the following circumstances ("opt-out"):

- for our affiliates' everyday business purposes – information about your creditworthiness; and
- for our affiliates to market to you.

To the extent permitted above, you may opt-out of disclosure or use of your Personal Information and Browsing Information by notifying us by one of the methods at the end of this Privacy Notice. We do not share your personal information with non-affiliates for their direct marketing purposes.

For California Residents: We will not share your Personal Information and Browsing Information with nonaffiliated third parties, except as permitted by California law. Currently, our policy is that we do not recognize "do not track" requests from Internet browsers and similar devices.

For Nevada Residents: You may be placed on our internal Do Not Call List by calling (888) 934-3354 or by contacting us via the information set forth at the end of this Privacy Notice. Nevada law requires that we also provide you with the following contact information: Bureau of Consumer Protection, Office of the Nevada Attorney General, 555 E. Washington St., Suite 3900, Las Vegas, NV 89101; Phone number: (702) 486-3132; email: BCPINFO@ag.state.nv.us.

For Oregon Residents: We will not share your Personal Information and Browsing Information with nonaffiliated third parties for marketing purposes, except after you have been informed by us of such sharing and had an opportunity to indicate that you do not want a disclosure made for marketing purposes.

For Vermont Residents: We will not share your Personal Information and Browsing Information with nonaffiliated third parties, except as permitted by Vermont law, such as to process your transactions or to maintain your account. In addition, we will not share information about your

creditworthiness with our affiliates except with your authorization. For joint marketing in Vermont, we will only disclose your name, contact information and information about your transactions.



Information From Children

The Website is meant for adults and is not intended or designed to attract children under the age of thirteen (13). We do not collect Personal Information from any person that we know to be under the age of thirteen (13) without permission from a parent or guardian. By using the Website, you affirm that you are over the age of 13 and will abide by the terms of this Privacy Notice.

Privacy Outside the Website

The Website may contain links to other websites. FNF is not and cannot be responsible for the privacy practices or the content of any of those other websites.

International Users

FNF's headquarters is located within the United States. If you reside outside the United States or are a citizen of the European Union, please note that we may transfer your Personal Information and/or Browsing Information outside of your country of residence or the European Union for any of the purposes described in this Privacy Notice. By providing FNF with your Personal Information and/or Browsing Information, you consent to our collection and transfer of such information in accordance with this Privacy Notice.

The California Online Privacy Protection Act

For some FNF websites, such as the Customer CareNet ("CCN"), FNF is acting as a third party service provider to a mortgage loan servicer. In those instances, we may collect certain information on behalf of that mortgage loan servicer via the website. The information which we may collect on behalf of the mortgage loan servicer is as follows:

- first and last name;
- property address;
- user name and password;
- loan number;
- social security number - masked upon entry;
- email address;
- three security questions and answers; and
- IP address.

The information you submit through the website is then transferred to your mortgage loan servicer by way of CCN. **The mortgage loan servicer is responsible for taking action or making changes to any consumer information submitted through this website. For example, if you believe that your payment or user information is incorrect, you must contact your mortgage loan servicer.**

CCN does not share consumer information with third parties, other than (1) those with which the mortgage loan servicer has contracted to interface with the CCN application, or (2) law enforcement or other governmental authority in connection with an investigation, or civil or criminal subpoenas or court orders. All sections of this Privacy Notice apply to your interaction with CCN, except for the sections titled "Choices with Your Information" and "Access and Correction." If you have questions regarding the choices you have with regard to your personal information or how to access or correct your personal information, you should contact your mortgage loan servicer.

Your Consent To This Privacy Notice

By submitting Personal Information and/or Browsing Information to FNF, you consent to the collection and use of the information by us in compliance with this Privacy Notice. Amendments to the Privacy Notice will be posted on the Website. Each time you provide information to us, or we receive information about you, following any amendment of this Privacy Notice will signify your assent to and acceptance of its revised terms for all previously collected information and information collected from you in the future. We may use comments, information or feedback that you submit to us in any manner that we may choose without notice or compensation to you.

Accessing and Correcting Information; Contact Us

If you have questions, would like to access or correct your Personal Information, or want to opt-out of information sharing with our affiliates for their marketing purposes, please send your requests to privacy@fnf.com or by mail or phone to:

Fidelity National Financial, Inc.
601 Riverside Avenue
Jacksonville, Florida 32204 Attn: Chief Privacy Officer (888) 934-3354



Note: Notice of Available Title Insurance and Escrow Discounts

Your transaction may qualify for one of the discounts shown below. In order to receive these discounts, you will need to contact your escrow officer or a company representative to determine if you qualify and to request the discount. Your escrow officer or company representative will provide a full description of the terms, conditions and requirements associated with each discount.

Available Title Insurance Discounts (These discounts will apply to all transactions where the company is issuing a policy of title insurance, including such transactions where the company is not providing escrow closing services.)

CREDIT FOR PRELIMINARY TITLE REPORTS AND/OR COMMITMENT CANCELLATION CHARGES ON SUBSEQUENT POLICIES

Where an order was cancelled and no major change in the title has occurred since the issuance of the original report or commitment, and the order is reopened within 24 - 36 months, all or a portion of the charge previously paid upon the cancellation of the report or commitment may be credited on a subsequent policy charge.

SHORT TERM RATE

The Short Term Rate is a reduction of the applicable insurance rate which is allowable only when the current order is placed within 60 months from the date of issuance of a prior policy of title insurance to the vested owner or an assignee of the interest insured. The short term rate is 80% of the Basic Rate. Unless otherwise stated, the reduction only applies to policies priced at 80% or greater of the basic rate. This reduction does not apply to Short Sale transactions or to any surcharge calculated on the basic rate.

PRIOR POLICY DISCOUNT (APPLICABLE TO ZONE 2, DIRECT OPERATIONS ONLY)

The Prior Policy Discount will apply when a seller or borrower provides a copy of their owner's policy upon opening escrow. The prior policy rate is 70% of the applicable owner's title premium. This discount may not be used in combination with any other discount and can only be used in transactions involving property located in Zone 2 (Zone 2 includes all Nevada counties except Clark, Lincoln and Nye) that are handled by a direct operation of the FNF Family of Companies.

CHURCHES OR CHARITABLE NON-PROFIT ORGANIZATIONS

On properties used as a church or for charitable purposes within the scope of the normal activities of such entities the charge for a policy shall be 50% to 70% of the appropriate title insurance rate, depending on the type of coverage selected. This discount shall not apply to charges for loan policies issued concurrently with an owner's policy.

EMPLOYEE RATE

No charge shall be made to employees of the Company, its subsidiary or affiliated companies (including employees on approved retirement) for policies issued in connection with financing, refinancing, sale or purchase of the employee's bonafide home property. Waiver of such charges is authorized only in connection with those costs which the employee would be obligated to pay, by established custom, as a party to the transaction.

INVESTOR RATE

This rate is available for individuals, groups of individuals or entities customarily engaged in real estate investments. The parties must provide reasonable proof that they currently hold title to or have transferred title to three (3) or more investment properties in the State of Nevada within the past twelve (12) months to qualify for this rate. On a sale transaction, the investor rate is 70% of the basic rate. This reduction does not apply to any surcharge calculated on the basic rate. On a refinance transaction or where the investor is obtaining a loan subsequent to a purchase, the rate shall be 85% of the applicable rate with a minimum charge of \$385.00. The loan discount shall only apply to transactions priced under Section 5.1 B (1b) of the title insurance rate manual. This rate is available upon request only.

Available Escrow Discounts These discounts will apply only to the escrow fee portion of your settlement charges, and the discounts will apply only if the company is issuing a policy of title insurance in conjunction with providing escrow services.

SENIOR CITIZEN RATE

If a valid identification is provided, principals to a given transaction who qualify as Senior Citizens (55 year of age and over) shall be charged 70% of their portion of the escrow fee wherein a valid identification is provided. This discount shall only apply on residential resale transactions wherein the principal resides in the subject property. This discount may not be used in combination with any other escrow rate discount. This rate is available upon request only.



MILITARY DISCOUNT

Any person on active military duty or a Veteran of the U.S. Armed Forces shall be charged 80% of their portion of the escrow fee. A copy of a current military identification card or a copy of the DD-214 (Certificate of Release or Discharge from Active Duty) must be provided. This discount may not be used in combination with any other discount. This rate is for sale transaction and it is available upon request only.

FIRST TIME HOMEBUYER RATE (APPLICABLE TO ZONE 2 ONLY)

A first time homebuyer of an owner-occupied residential property shall be charged 75% of their portion of the escrow fee, provided reasonable evidence is presented that this is their first home. Applies to all counties **except** Clark, Lincoln and Nye. This discount may not be used in combination with any other discount. This rate is for sale transactions and it is available upon request only.

EMPLOYEE RATES

An employee will not be charged an escrow fee for the purchase, sale or refinance of the employee's primary residence. The employee must be a principal to the transaction and the request for waiver of fees must be submitted to Management prior to approval.

INVESTOR RATE

This rate is available for individuals, groups of individuals or entities customarily engaged in real estate transactions. The parties must provide reasonable proof that they currently hold title to or have transferred title to three (3) or more investment properties within the State of Nevada within the past twelve (12) months to qualify for this rate. The charge is 70% of their portion of the escrow fee. This discount may not be used in combination with any other discount. This rate is for sale transactions and it is available upon request, only.

ATTACHMENT ONE (Revised 05-06-16)**CALIFORNIA LAND TITLE ASSOCIATION STANDARD COVERAGE POLICY -
1990****EXCLUSIONS FROM COVERAGE**

The following matters are expressly excluded from the coverage of this policy and the Company will not pay loss or damage, costs, attorneys' fees or expenses which arise by reason of:

1. (a) Any law, ordinance or governmental regulation (including but not limited to building or zoning laws, ordinances, or regulations) restricting, regulating prohibiting or relating (i) the occupancy, use, or enjoyment of the land; (ii) the character, dimensions or location of any improvement now or hereafter erected on the land; (iii) a separation in ownership or a change in the dimensions or area of the land or any parcel of which the land is or was a part; or (iv) environmental protection, or the effect of any violation of these laws, ordinances or governmental regulations, except to the extent that a notice of the enforcement thereof or a notice of a defect, lien, or encumbrance resulting from a violation or alleged violation affecting the land has been recorded in the public records at Date of Policy.
- (b) Any governmental police power not excluded by (a) above, except to the extent that a notice of the exercise thereof or notice of a defect, lien or encumbrance resulting from a violation or alleged violation affecting the land has been recorded in the public records at Date of Policy.
2. Rights of eminent domain unless notice of the exercise thereof has been recorded in the public records at Date of Policy, but not excluding from coverage any taking which has occurred prior to Date of Policy which would be binding on the rights of a purchaser for value without knowledge.
3. Defects, liens, encumbrances, adverse claims or other matters:
 - (a) whether or not recorded in the public records at Date of Policy, but created, suffered, assumed or agreed to by the insured claimant;
 - (b) not known to the Company, not recorded in the public records at Date of Policy, but known to the insured claimant and not disclosed in writing to the Company by the insured claimant prior to the date the insured claimant became an insured under this policy;
 - (c) resulting in no loss or damage to the insured claimant;
 - (d) attaching or created subsequent to Date of Policy; or
 - (e) resulting in loss or damage which would not have been sustained if the insured claimant had paid value for the insured mortgage or for the estate or interest insured by this policy.
4. Unenforceability of the lien of the insured mortgage because of the inability or failure of the insured at Date of Policy, or the inability or failure of any subsequent owner of the indebtedness, to comply with the applicable doing business laws of the state in which the land is situated.
5. Invalidity or unenforceability of the lien of the insured mortgage, or claim thereof, which arises out of the transaction evidenced by the insured mortgage and is based upon usury or any consumer credit protection or truth in lending law.
6. Any claim, which arises out of the transaction vesting in the insured the estate of interest insured by this policy or the transaction creating the interest of the insured lender, by reason of the operation of federal bankruptcy, state insolvency or similar creditors' rights laws.

EXCEPTIONS FROM COVERAGE - SCHEDULE B, PART I

This policy does not insure against loss or damage (and the Company will not pay costs, attorneys' fees or expenses) which arise by reason of:

1. Taxes or assessments which are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the public



records.

Proceedings by a public agency which may result in taxes or assessments, or notices of such proceedings, whether or not shown by the records of such agency or by the public records.

2. Any facts, rights, interests, or claims which are not shown by the public records but which could be ascertained by an inspection of the land or which may be asserted by persons in possession thereof.
3. Easements, liens or encumbrances, or claims thereof, not shown by the public records.
4. Discrepancies, conflicts in boundary lines, shortage in area, encroachments, or any other facts which a correct survey would disclose, and which are not shown by the public records.
5. (a) Unpatented mining claims; (b) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) water rights, claims or title to water, whether or not the matters excepted under (a), (b) or (c) are shown by the public records.
6. Any lien or right to a lien for services, labor or material not shown by the public records.

CLTA HOMEOWNER'S POLICY OF TITLE INSURANCE (12-02-13) ALTA HOMEOWNER'S POLICY OF TITLE INSURANCE

EXCLUSIONS

In addition to the Exceptions in Schedule B, You are not insured against loss, costs, attorneys' fees, and expenses resulting from

1. Governmental police power, and the existence or violation of those portions of any law or government regulation concerning:
 - a. building;
 - b. zoning;
 - c. land use;
 - d. improvements on the Land;
 - e. land division; and
 - f. environmental protection.

This Exclusion does not limit the coverage described in Covered Risk 8.a., 14, 15, 16, 18, 19, 20, 23 or 27.
2. The failure of Your existing structures, or any part of them, to be constructed in accordance with applicable building codes. This Exclusion does not limit the coverage described in Covered Risk 14 or 15.
3. The right to take the Land by condemning it. This Exclusion does not limit the coverage described in Covered Risk 17.
4. Risks:
 - a. that are created, allowed, or agreed to by You, whether or not they are recorded in the Public Records;
 - b. that are Known to You at the Policy Date, but not to Us, unless they are recorded in the Public Records at the Policy Date;
 - c. that result in no loss to You; or
 - d. that first occur after the Policy Date - this does not limit the coverage described in Covered Risk 7, 8.e., 25, 26, 27 or 28.
5. Failure to pay value for Your Title.
6. Lack of a right:

- a. to any land outside the area specifically described and referred to in paragraph 3 of Schedule A; and
- b. in streets, alleys, or waterways that touch the Land.

This Exclusion does not limit the coverage described in Covered Risk 11 or 21.

7. The transfer of the Title to You is invalid as a preferential transfer or as a fraudulent transfer or conveyance under federal bankruptcy, state insolvency, or similar creditors' rights laws.
8. Contamination, explosion, fire, flooding, vibration, fracturing, earthquake, or subsidence.
9. Negligence by a person or an Entity exercising a right to extract or develop minerals, water, or any other substances.

LIMITATIONS ON COVERED RISKS

Your insurance for the following Covered Risks is limited on the Owner's Coverage Statement as follows:

- For Covered Risk 16, 18, 19, and 21 Your Deductible Amount and Our Maximum Dollar Limit of Liability shown in Schedule A. The deductible amounts and maximum dollar limits shown on Schedule A are as follows:

	Your Deductible Amount	Our Maximum Dollar Limit of Liability
	1.00% of Policy Amount Shown in Schedule A or \$2,500.00	
Covered Risk 16:	(whichever is less)	\$ 10,000.00
	1.00% of Policy Amount Shown in Schedule A or \$5,000.00	
Covered Risk 18:	(whichever is less)	\$ 25,000.00
	1.00% of Policy Amount Shown in Schedule A or \$5,000.00	
Covered Risk 19:	(whichever is less)	\$ 25,000.00
	1.00% of Policy Amount Shown in Schedule A or \$2,500.00	
Covered Risk 21:	(whichever is less)	\$ 5,000.00

2006 ALTA LOAN POLICY (06-17-06) EXCLUSIONS FROM COVERAGE

The following matters are expressly excluded from the coverage of this policy, and the Company will not pay loss or damage, costs, attorneys' fees, or expenses that arise by reason of:

1. (a) Any law, ordinance, permit, or governmental regulation (including those relating to building and zoning) restricting, regulating, prohibiting, or relating to
 - (i) the occupancy, use, or enjoyment of the Land;
 - (ii) the character, dimensions, or location of any improvement erected on the Land;
 - (iii) the subdivision of land; or
 - (iv) environmental protection;or the effect of any violation of these laws, ordinances, or governmental regulations. This Exclusion 1(a) does not modify or limit the coverage provided under Covered Risk 5.
- (b) Any governmental police power. This Exclusion 1(b) does not modify or limit the coverage provided under Covered Risk 6.
2. Rights of eminent domain. This Exclusion does not modify or limit the coverage provided under Covered Risk 7 or 8.
3. Defects, liens, encumbrances, adverse claims, or other matters
 - (a) created, suffered, assumed, or agreed to by the Insured Claimant;
 - (b) not Known to the Company, not recorded in the Public Records at Date of Policy, but Known to the Insured Claimant and not disclosed in writing to the Company by the Insured Claimant prior to the date the Insured Claimant became an Insured under this policy;
 - (c) resulting in no loss or damage to the Insured Claimant;
 - (d) attaching or created subsequent to Date of Policy (however, this does not modify or limit the coverage provided under Covered Risk 11, 13 or 14); or
 - (e) resulting in loss or damage that would not have been sustained if the Insured Claimant had paid value for the Insured Mortgage.
4. Unenforceability of the lien of the Insured Mortgage because of the inability or failure of an Insured to comply with applicable doing-business laws of the state where the Land is situated.
5. Invalidity or unenforceability in whole or in part of the lien of the Insured Mortgage that arises out of the transaction evidenced by the Insured Mortgage and is based upon usury or any consumer credit protection or truth-in-lending law.
6. Any claim, by reason of the operation of federal bankruptcy, state insolvency, or similar creditors' rights laws, that the transaction creating the lien of the Insured Mortgage, is
 - (a) a fraudulent conveyance or fraudulent transfer, or
 - (b) a preferential transfer for any reason not stated in Covered Risk 13(b) of this policy.
7. Any lien on the Title for real estate taxes or assessments imposed by governmental authority and created or attaching between Date of Policy and the date of recording of the Insured Mortgage in the Public Records. This Exclusion does not modify or limit the coverage provided under Covered Risk 11(b).

The above policy form may be issued to afford either Standard Coverage or Extended Coverage. In addition to the above Exclusions from Coverage, the Exceptions from Coverage in a Standard Coverage policy will also include the following Exceptions from Coverage:

EXCEPTIONS FROM COVERAGE

{Except as provided in Schedule B - Part II, { (or T) his policy does not insure against loss or damage, and the Company will not pay costs, attorneys' fees or expenses, that arise by reason of:

{PART I

{The above policy form may be issued to afford either Standard Coverage or Extended Coverage. In addition to the above Exclusions from Coverage, the Exceptions from Coverage in a Standard Coverage policy will also include the following Exceptions from Coverage:

1. (a) Taxes or assessments that are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the Public Records; (b) proceedings by a public agency that may result in taxes or assessments, or notices of such proceedings, whether or not shown by the records of such agency or by the Public Records.
2. Any facts, rights, interests, or claims that are not shown by the Public Records but that could be ascertained by an inspection of the Land or that may be asserted by persons in possession of the Land.
3. Easements, liens or encumbrances, or claims thereof, not shown by the Public Records.
4. Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the Title that would be disclosed by an accurate and complete land survey of the Land and not shown by the Public Records.
5. (a) Unpatented mining claims; (b) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) water rights, claims or title to water, whether or not the matters excepted under (a), (b), or (c) are shown by the Public Records.
6. Any lien or right to a lien for services, labor or material not shown by the Public Records.}

PART II

In addition to the matters set forth in Part I of this Schedule, the Title is subject to the following matters, and the Company insures against loss or damage sustained in the event that they are not subordinate to the lien of the Insured Mortgage:}

2006 ALTA OWNER'S POLICY (06-17-06) EXCLUSIONS FROM COVERAGE

The following matters are expressly excluded from the coverage of this policy, and the Company will not pay loss or damage, costs, attorneys' fees, or expenses that arise by reason of:

1. (a) Any law, ordinance, permit, or governmental regulation (including those relating to building and zoning) restricting, regulating, prohibiting, or relating to

- (i) the occupancy, use, or enjoyment of the Land;
 - (ii) the character, dimensions, or location of any improvement erected on the Land;
 - (iii) the subdivision of land; or
 - (iv) environmental protection;
- or the effect of any violation of these laws, ordinances, or governmental regulations. This Exclusion 1(a) does not modify or limit the coverage provided under Covered Risk 5.
- (b) Any governmental police power. This Exclusion 1(b) does not modify or limit the coverage provided under Covered Risk 6.
2. Rights of eminent domain. This Exclusion does not modify or limit the coverage provided under Covered Risk 7 or 8.
 3. Defects, liens, encumbrances, adverse claims, or other matters
 - (a) created, suffered, assumed, or agreed to by the Insured Claimant;
 - (b) not Known to the Company, not recorded in the Public Records at Date of Policy, but Known to the Insured Claimant and not disclosed in writing to the Company by the Insured Claimant prior to the date the Insured Claimant became an Insured under this policy;
 - (c) resulting in no loss or damage to the Insured Claimant;
 - (d) attaching or created subsequent to Date of Policy (however, this does not modify or limit the coverage provided under Covered Risk 9 and 10); or
 - (e) resulting in loss or damage that would not have been sustained if the Insured Claimant had paid value for the Title.
 4. Any claim, by reason of the operation of federal bankruptcy, state insolvency, or similar creditors' rights laws, that the transaction vesting the Title as shown in Schedule A, is
 - (a) a fraudulent conveyance or fraudulent transfer; or
 - (b) a preferential transfer for any reason not stated in Covered Risk 9 of this policy.
 5. Any lien on the Title for real estate taxes or assessments imposed by governmental authority and created or attaching between Date of Policy and the date of recording of the deed or other instrument of transfer in the Public Records that vests Title as shown in Schedule A.
- The above policy form may be issued to afford either Standard Coverage or Extended Coverage. In addition to the above Exclusions from Coverage, the Exceptions from Coverage in a Standard Coverage policy will also include the following Exceptions from Coverage:

EXCEPTIONS FROM COVERAGE

- This policy does not insure against loss or damage, and the Company will not pay costs, attorneys' fees or expenses, that arise by reason of:
- {The above policy form may be issued to afford either Standard Coverage or Extended Coverage. In addition to the above Exclusions from Coverage, the Exceptions from Coverage in a Standard Coverage policy will also include the following Exceptions from Coverage:
1. (a) Taxes or assessments that are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the Public Records; (b) proceedings by a public agency that may result in taxes or assessments, or notices of such proceedings, whether or not shown by the records of such agency or by the Public Records.
 2. Any facts, rights, interests, or claims that are not shown in the Public Records but that could be ascertained by an inspection of the Land or that may be asserted by persons in possession of the Land.
 3. Easements, liens or encumbrances, or claims thereof, not shown by the Public Records.
 4. Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the Title that would be disclosed by an accurate and complete land survey of the Land and that are not shown by the Public Records.
 5. (a) Unpatented mining claims; (b) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) water rights, claims or title to water, whether or not the matters excepted under (a), (b), or (c) are shown by the Public Records.
 6. Any lien or right to a lien for services, labor or material not shown by the Public Records. }
 7. {Variable exceptions such as taxes, easements, CC&R's, etc. shown here.}

ALTA EXPANDED COVERAGE RESIDENTIAL LOAN POLICY - ASSESSMENTS PRIORITY (04-02-15)

EXCLUSIONS FROM COVERAGE

The following matters are expressly excluded from the coverage of this policy and the Company will not pay loss or damage, costs, attorneys' fees or expenses which arise by reason of:

1. (a) Any law, ordinance, permit, or governmental regulation (including those relating to building and zoning) restricting, regulating, prohibiting, or relating to
 - (i) the occupancy, use, or enjoyment of the Land;
 - (ii) the character, dimensions, or location of any improvement erected on the Land;
 - (iii) the subdivision of land; or
 - (iv) environmental protection;
 or the effect of any violation of these laws, ordinances, or governmental regulations. This Exclusion 1(a) does not modify or limit the coverage provided under Covered Risk 5, 6, 13(c), 13(d), 14 or 16.
 - (b) Any governmental police power. This Exclusion 1(b) does not modify or limit the coverage provided under Covered Risk 5, 6, 13(c), 13(d), 14 or 16.
2. Rights of eminent domain. This Exclusion does not modify or limit the coverage provided under Covered Risk 7 or 8.
3. Defects, liens, encumbrances, adverse claims, or other matters
 - (a) created, suffered, assumed, or agreed to by the Insured Claimant;
 - (b) not Known to the Company, not recorded in the Public Records at Date of Policy, but Known to the Insured Claimant and not disclosed in writing to the Company by the Insured Claimant prior to the date the Insured Claimant became an Insured under this policy;
 - (c) resulting in no loss or damage to the Insured Claimant;
 - (d) attaching or created subsequent to Date of Policy (however, this does not modify or limit the coverage provided under Covered Risk 11, 16, 17, 18, 19, 20, 21, 22, 23, 24, 27 or 28); or
 - (e) resulting in loss or damage that would not have been sustained if the Insured Claimant had paid value for the Insured Mortgage.
4. Unenforceability of the lien of the Insured Mortgage because of the inability or failure of an Insured to comply with applicable doing-business laws of the state where the Land is situated.
5. Invalidity or unenforceability in whole or in part of the lien of the Insured Mortgage that arises out of the transaction evidenced by the Insured Mortgage and is based

upon usury, or any consumer credit protection or truth-in-lending law. This Exclusion does not modify or limit the coverage provided in Covered Risk 26.

6. Any claim of invalidity, unenforceability or lack of priority of the lien of the Insured Mortgage as to Advances or modifications made after the Insured has Knowledge that the vestee shown in Schedule A is no longer the owner of the estate or interest covered by this policy. This Exclusion does not modify or limit the coverage provided in Covered Risk 11.
7. Any lien on the Title for real estate taxes or assessments imposed by governmental authority and created or attaching subsequent to Date of Policy. This Exclusion does not modify or limit the coverage provided in Covered Risk 11(b) or 25.
8. The failure of the residential structure, or any portion of it, to have been constructed before, on or after Date of Policy in accordance with applicable building codes. This Exclusion does not modify or limit the coverage provided in Covered Risk 5 or 6.
9. Any claim, by reason of the operation of federal bankruptcy, state insolvency, or similar creditors' rights laws, that the transaction creating the lien of the Insured Mortgage, is
 - (a) a fraudulent conveyance or fraudulent transfer, or
 - (b) a preferential transfer for any reason not stated in Covered Risk 27(b) of this policy.
10. Contamination, explosion, fire, flooding, vibration, fracturing, earthquake, or subsidence.
11. Negligence by a person or an Entity exercising a right to extract or develop

EXHIBIT A LEGAL DESCRIPTION

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE COUNTY OF CLARK, STATE OF NEVADA, AND IS DESCRIBED AS FOLLOWS:

Parcel One (1):

Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, Page 39, Official Records of Clark County, Nevada.

Excepting Therefrom Parcels "A" and "B" as shown on that Record of Survey recorded in File 184 of Surveys, Page 68 of Official Records in Clark County, Nevada, more particularly described as follows:

Parcel "A"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW $\frac{1}{4}$) of the Southwest Quarter (SW $\frac{1}{4}$) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 23.21 feet to the Point of Beginning; thence departing said South line, North 05°08'03" East, 60.62 feet; thence South 89°12'48" East, 64.35 feet; thence South 05°08'03" West, 61.19 feet to the South line of said Lot One (1); thence along said South line, North 88°42'36" West, 64.31 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.92 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said parcel consists of air rights only.

And

Parcel "B"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW ¼) of the Southwest Quarter (SW ¼) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 128.29 feet to the Point of Beginning; thence departing said South line, North 01°15'51" East, 4.74 feet; thence North 88°44'09" West, 2.99 feet to the beginning of a non-tangent curve, concave to the East, having a radius of 52.00 feet, from which beginning the radius bears South 89°50'17" East, thence Northerly along said curve, through a central angle of 09°55'21", an arc length of 9.01 feet; thence South 81°07'25" East, 3.04 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.83 feet, from which beginning the radius bears South 80°10'47" East; thence Northeasterly along said curve, through a central angle of 29°15'25", an arc length of 24.42 feet; thence North 49°24'59" West, 3.00 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.82 feet, from which beginning the radius bears South 51°49'50" East; thence Northeasterly along said curve, through a central angle of 10°46'44", an arc length of 9.00 feet; thence South 41°15'24" East, 2.31 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 54.50 feet, from which beginning the radius bears South 52°39'46" East; thence Northeasterly along said curve, through a central angle of 59°40'53", an arc length of 56.77 feet to the beginning of a non-tangent curve, concave to the North, having a radius of 44.00 feet, from which beginning the radius bears North 36°06'43" East; thence Easterly along said curve, through a central angle of 79°55'17", an arc length of 61.38 feet; thence South 43°48'34" East, 20.95 feet; thence South 88°44'09" East, 55.02 feet to a point on the Easterly boundary of said Lot One (1); thence along said Easterly boundary, South 01°14'01" East, 54.88 feet to the Southerly boundary of said Lot One (1); thence along said Southerly boundary, North 88°42'36" West, 193.47 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.00 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said Parcel consists of air rights only.

The foregoing metes and bounds legal descriptions were prepared by John Forsman, Horizon Surveys, 9901 Covington Cross, Suite 120, Las Vegas, NV 89144.

Parcel Two (2):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easement recorded April 21, 1981 in Book 1388 as Document No. 1347424 and amended by Amendment to Grant of Easement recorded July 15, 1986 in Book 860715 as Document No. 00811, Official Records, Clark County, Nevada.

Parcel Three (3):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easement recorded April 21, 1981 in Book 1388 as Document No. 1347426, Official Records, Clark County, Nevada.

Parcel Four (4):

A non-exclusive easement for ingress and egress as set forth in that certain Memorandum of Agreement recorded April 16, 1998 in Book 980416 as Document No. 000618, Official Records, Clark County, Nevada..

Parcel Five (5):

A non-exclusive easement for ingress and egress as set forth in that certain Grant of Easements and Declaration Establishing Rights, Covenants, Conditions and Restrictions Regarding the Construction, Use, Operation and Maintenance of the Connection Area to the Monorail Station recorded September 20, 2000 in Book 20000920 as Document No. 00208, Official Records, Clark County, Nevada.

Parcel Six (6):

A non-exclusive easement for ingress and egress as set forth in that certain Right of Entry Agreement for Ingress and Egress recorded August 26, 2002 in Book 20020826 as Document No. 00566, Official Records, Clark County, Nevada.

Parcel Seven (7):

A non-exclusive easement for ingress and egress as set forth in that certain Declaration of Covenants, Restrictions and Easements, recorded August 10, 2011 as Instrument No. 2011081000001475, as amended by that certain First Amendment to the Declaration of Covenants, Restrictions and Easements, recorded September 12, 2012 as Instrument No. 2010912-0002364, and further amended by that certain Second Amendment to Declaration of Covenants, Restrictions and Easements, recorded October 11, 2013, as Instrument No. 20131011-0004747, Official Records, Clark County, Nevada.

AS-SURVEYED LEGAL DESCRIPTION:

Beginning at the Northwest Corner of Lot 1 of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, Thence South 89°10'27" East, 1,061.65 feet; Thence North 00°58'24" West, 7.81 feet; Thence South 89°19'19" East, 1,309.30 feet; Thence South 00°43'19" East, 40.01 feet; Thence North 89°19'19" West, 498.05 feet; Thence South 00°00'46" East, 191.84 feet; Thence North 88°54'30" West, 788.03 feet; Thence South 00°58'24" East, 213.11 feet; Thence South 89°01'36" West, 20.00 feet; Thence South 00°58'24" East, 40.00 feet; Thence North 88°42'36" West, 863.90 feet; Thence South 01°14'01" East, 150.01 feet; Thence North 88°42'36" West, 321.76 feet to

the beginning of a non-tangent curve, concave to the East, having a radius of 3,960.00 feet, from which beginning the radius bears South 84°03'06" East; Thence Northerly along said curve, through a central angle of 08°59'35", an arc length of 621.55 feet to the point of beginning,

Excepting therefrom Parcels "A" and "B" as shown on that Record of Survey recorded in File 184 of Surveys, page 68, of Official Records in Clark County, Nevada, more particularly described as follows:

Parcel "A"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW ¼) of the Southwest Quarter (SW ¼) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 23.21 feet to the Point of Beginning; thence departing said South line North 05°08'03" East, 60.62 feet; thence South 89°12'48" East, 64.35 feet; thence South 05°08'03" West, 61.19 feet to the South line of said Lot One (1); thence along said South line, North 88°42'36" West, 64.31 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.92 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.57 feet.

Said parcel consists of air rights only. And

Parcel "B"

A portion of Lot One (1) of that certain Final Map entitled "Final Map of Harrah's, a Commercial Subdivision", recorded in Book 143 of Plats, at Page 39, Official Records of Clark County, Nevada, lying within the Southwest Quarter (SW ¼) of the Southwest Quarter (SW ¼) of Section 16, Township 21 South, Range 61 East, M.D.M., Clark County, Nevada, described as follows:

Commencing at the Southwest corner of said Lot One (1); thence along the South line thereof, South 88°42'36" East, 128.29 feet to the Point of Beginning; thence departing said South line, North 01°15'51" East, 4.74 feet; thence North 88°44'09" West, 2.99 feet to the beginning of a non-tangent curve, concave to the East, having a radius of 52.00 feet, from which beginning the radius bears South 89°50'17" East, thence Northerly along said curve, through a central angle of 09°55'21", an arc length of 9.01 feet; thence South 81°07'25" East, 3.04 feet to the beginning of a non-tangent curve, concave to the

Southeast, having a radius of 47.83 feet, from which beginning the radius bears South 80°10'47" East; thence Northeasterly along said curve, through a central angle of 29°15'25", an arc length of 24.42 feet; thence North 49°24'59" West, 3.00 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 47.82 feet, from which beginning the radius bears South 51°49'50" East; thence Northeasterly along said curve, through a central angle of 10°46'44", an arc length of 9.00 feet; thence South 41°15'24" East, 2.31 feet to the beginning of a non-tangent curve, concave to the Southeast, having a radius of 54.50 feet, from which beginning the radius bears South 52°39'46" East; thence Northeasterly along said curve, through a central angle of 59°40'53", an arc length of 56.77 feet to the beginning of a non-tangent curve, concave to the North, having a radius of 44.00 feet, from which beginning the radius bears North 36°06'43" East; thence Easterly along said curve, through a central angle of 79°55'17", an arc length of 61.38 feet; thence South 43°48'34" East, 20.95 feet; thence South 88°44'09" East, 55.02 feet to a point on the Easterly boundary of said Lot One (1); thence along said Easterly boundary, South 01°14'01" East, 54.88 feet to the Southerly boundary of said Lot One (1); thence along said Southerly boundary, North 88°42'36" West, 193.47 feet to the Point of Beginning.

Excepting Therefrom all of the above-described area lying below an elevation of 2103.00 feet, based on Clark County Bench Mark 7C11 21NWS, a rivet and square aluminum plate in top of curb, Northeast corner of Flamingo Road and Las Vegas Blvd. near the PC of Flamingo Rd. having a record elevation of 2106.27 feet.

Said Parcel consists of air rights only.

The foregoing metes and bounds legal descriptions were prepared by Ryan Sligar, Horizon Surveys, 10501 West Gowan Road, Suite 200, Las Vegas, NV 89129.

APN: 162-16-312-002